

File No.: EXP202309451

RESOLUTION OF RIGHTS PROCEDURE

After carrying out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: A.A.A. (hereinafter, the claimant) exercised the right of Access against EMAYA, EMPRESA MUNICIPAL D'AIGUES I CLAVEGUERAM, S.A. (hereinafter, the respondent) without receiving the legally established response to their request.

The claimant states that they are the Data Protection Officer of the respondent entity and that on May 29, 2023, they requested via email access to images from the surveillance system of some facilities of the respondent entity. They received a response from one of the entity's officials on May 30, 2023, denying access. They were informed that the recordings could not be provided without prior authorization from the director of the affected employee and that they were only delivered in judicial settings, understanding that this response is inadequate and obstructs their right of access. The claimant provides a copy of the exchanged emails with the respondent and the responses received.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

THIRD: The result of the transfer procedure indicated in the previous Fact did not satisfy the claims of the claimant. Consequently, on August 16, 2023, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for the Protection of Data agreed to admit the complaint for processing.

The aforementioned agreement granted the respondent a hearing period, so that within ten working days, they could present any arguments they deemed appropriate.

The respondent, after several explanations to justify their position of not delivering the recordings of the images, considering that they had not been requested according to their established protocol, stated that they had sent the claimant a description of what is seen in the requested recording.

FOURTH: After examining the document submitted by the respondent, it was forwarded to the claimant, so that, within ten working days, they could formulate any arguments they considered appropriate.

The claimant, aware of the arguments of the respondent due to the transfer made by this Agency, has also submitted arguments regarding them.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for the Protection of Data is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for the Protection of Data shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, by the general rules on administrative procedures in a subsidiary manner."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for the Protection of

Data is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as addressing complaints filed by an interested party and investigating, as appropriate, the reasons for them.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with that authority.

In accordance with this regulation, following the procedure established in Article 65.4 of the LOPDGDD, prior to the admission of the complaint regarding the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to the present procedure, it was forwarded to the respondent for them to...

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proceed to its analysis, respond to this Agency within one month, and prove that it has provided the claimant with the appropriate response.

The result of this transfer did not allow for the understanding that the claims of the claimant were satisfied. Consequently, on August 16, 2023, for the purposes provided in Articles 64.1 and 65 of the LOPDGDD, the complaint submitted was admitted for processing. This admission for processing determines the opening of the present procedure for lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

“When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it will be initiated by an admission agreement, which will be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure will be six months from the date on which the claimant was notified of the admission agreement. Once this period has elapsed, the interested party may consider their complaint accepted.”

Article 58.2 of the GDPR grants the Spanish Data Protection Agency a series of corrective powers for the purpose of remedying any infringement of the GDPR, including “ordering the data controller or processor to address the requests for the exercise of the rights of the data subject under this Regulation.”

III

Rights of individuals regarding personal data protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, deletion, opposition, the right to limit processing, and the right to portability are contemplated.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which will be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to the requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and to express its reasons in case it does not intend to address such request. The burden of proof of compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the data controller.

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The communication addressed to the interested party regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right of Access

In accordance with the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, "the interested party has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data." Regarding the right of access to personal data, according to the provisions of Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the data controller may request the affected party to specify the "data or processing activities to which the request refers." The right will be deemed granted if the controller provides remote access to the data, considering the request fulfilled (although the interested party may request the information referred to in the aspects provided for in Article 15 of the GDPR).

The exercise of this right may be considered repetitive if it is exercised more than once within a period of six months, unless there is a legitimate reason for doing so. Furthermore, the request will be considered excessive when the affected party chooses a means other than the one offered that incurs a disproportionate cost, which must be borne by the affected party.

Like the other rights of the interested party, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the data may be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the available information about the origin of the data (if it has not been obtained directly from the data subject), the existence of automated decisions, including profiling, and information about transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data being processed will not negatively affect the rights and freedoms of others; that is, the right of access will be granted in such a way that it does not affect third-party data.

V

Conclusion

In the case analyzed here, the claiming party exercised their right of Access, and after the period established in the aforementioned regulations, their request did not receive the legally required response, as the requested access was not provided.

It should be noted that for the resolution of this claim, only the requested right, the right of access, will be taken into account, whether it has been granted or denied with justification, thus fulfilling the request of the claimant. The other issues raised by the parties regarding labor law or any other judicial conflict are outside the jurisdiction of this Agency and will not affect the outcome of the resolution.

The aforementioned regulations do not allow the request to be overlooked as if it had not been made, leaving it without the response that the responsible parties are obligated to issue, even in the event that there are no data of the interested party in the entity's files or even in those cases where the requirements set forth are not met, in which case the recipient of such request is likewise obliged to require the rectification of the observed deficiencies or, if applicable, to deny the request with

justification indicating the reasons why the right in question cannot be considered.

Therefore, the request made obliges the responsible party to provide an express response in all cases, using any means that justifies the receipt of the response.

In this case, it is noted that during the processing of the claim that gives rise to this procedure, formulated precisely due to the lack of an adequate response to the request for the exercise of rights, the party being claimed has submitted among the allegations a letter sent on September 22, 2023, the content of which states:

"...SUBJECT: Viewing images 04-05-2023 by requester A.A.A.

This report certifies the facts viewed from the recording requested by A.A.A. from May 4, 2023, exercising their right of access.

Viewed facts: A.A.A. is seen in the landing of the first floor of the Son Pacs headquarters, talking with an unidentified person, followed by a staff member of EMAYA appearing from the stairs, both entering the boardroom. After several minutes, they leave the room and part ways. During the time they are inside the boardroom, two staff members of EMAYA are seen conversing in the landing. ..."

Now we are presented with the issue that the controversial matter is not access, as they provide the transcribed images, but the modality of access (the copy), citing third-party rights that appear in the images.

The right of access regulated in Article 15 of the GDPR includes the confirmation of whether personal data concerning the interested party is being processed, access to the same along with the information on the processing provided in the aforementioned article. Regarding access to personal data, it implies access to the actual data, not to the category of data processed. To provide access, Article 15.3 of the GDPR refers to the modalities for proceeding with access. Therefore, the copy is a modality for accessing the data, not an additional right of the interested party.

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Thus, Article 15.4 of the GDPR states that the right to obtain a copy mentioned in paragraph 3 of Article 15 shall not adversely affect the rights and freedoms of others. Therefore, to consider the right of access fulfilled, the provision of a copy of personal data (in this case, the recorded images) is not mandatory, as it is necessary to weigh the rights at stake, since the provision of a copy cannot negatively affect the rights and freedoms of others.

Notwithstanding the above, and although a transcription of the images has been provided to the interested party, in this specific case and considering the particular circumstances in which the events captured in the images occurred, the mere transcription is insufficient to fully guarantee the right of access.

In this specific case, therefore, it is appropriate to grant access to the complaining party also by means of exhibition. In this way, the right would be fully addressed without harming the rights of any of the parties.

In view of the cited provisions and other generally applicable ones, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ACCEPT the complaint filed by A.A.A. considering that the provisions of Article 15 of the GDPR have been infringed and to urge EMAYA, EMPRESA MUNICIPAL D'AIGUES I

CLAVEGUERAM, S.A. with NIF A07000029, to send to the complaining party, within ten working days following the notification of this resolution, a certification that addresses, under the conditions described in the V reasoning of this resolution, the requested right in accordance with the provisions of this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same period. Non-compliance with this resolution could result in the commission of an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

SECOND: NOTIFY this resolution to A.A.A. and to EMAYA, EMPRESA MUNICIPAL D'AIGUES I

CLAVEGUERAM, S.A.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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